

23NWCV02532 23NWCV02532

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Case Number: 23NWCV02532 Hearing Date: July 14, 2026 Dept: P

E.G. v. ABC

UNIFIED SCHOOL DISTRICT, ET AL.

CASE NO.: 23NWCV02532

HEARING: 07/14/2026 @ 10:30 AM

#14

TENTATIVE ORDER

I.

Plaintiff E.G.'s motion to compel further responses to form interrogatories, set one is GRANTED.

II.

Plaintiff's request for monetary sanctions is GRANTED in the amount of \$2,580 against Defendant ABC Unified School District and its attorneys of record.

Moving party to give notice.

Plaintiff E.G., a minor by her guardian ad litem Eric Gravitt, (Plaintiff) moves to compel Defendant ABC Unified School District (Defendant) to provide further responses to Plaintiff's general (form) interrogatories (FROGs), set one.

Background

On August 7, 2023, Plaintiff filed this action against Defendants ABC Unified School District (ABCUSD); Dr. Crechena Wise, as an individual and in her official capacity as Director Secondary Curriculum & Professional Learning for ABCUSD; Melissa Christensen, as an individual and in her official capacity as principal of Kennedy Stem Academy; Melinda Ortiz, as an individual and her Director of School Services, Child Welfare and Attendance, and Does 1 to 50, inclusive (collectively, Defendants). Following the Court's ruling on the demurrer sustaining in part and overruling in part the complaint, Plaintiff filed a first amended complaint (FAC). On October 14, 2025, the Court granted Plaintiff's motion for leave to file the second amended complaint (SAC). On February 10, 2026, Plaintiff filed the operative third amended complaint (TAC).

The TAC alleges the following: In January of 2022, when Plaintiff was a fifth grader attending a public school, she was informed she must get the COVID-19 vaccine or wear a mask to go to class. (TAC, ¶ 12.) Plaintiff's father refused to take Plaintiff home and objected to the requirements on religious grounds. (TAC, ¶ 13.) The TAC alleges male students who objected to the requirements on religious grounds were allowed to return to class. (TAC, ¶ 14.) On January 25, 2022, Plaintiff was barred from entering the classroom by the school principal, Christensen, and three district administrators, Ortiz, Scott Smith, and Wise. (TAC, ¶¶ 15-16.) The administrators spoke to Plaintiff's father, who recorded the conversation. (TAC, ¶ 17.) Ortiz directed Wise to call the sheriff's department and file a police report claiming Plaintiff's father was hostile. (TAC, ¶ 20.) During this time, Christensen and Ortiz walked Plaintiff to an isolation room and the sheriff took Plaintiff's phone. (TAC, ¶¶ 22-23.) Plaintiff was then kept in a "closet-sized room" where Plaintiff had difficulty breathing. (TAC, ¶ 26.) The next day, Plaintiff and her father returned to school where they were blocked from entering the campus by police. (TAC, ¶ 31.) On February 21, 2022, Plaintiff reported that wearing a mask caused her to be dizzy and unable to breathe. (TAC, ¶ 35.) Bill Hundley (Mr. Hundley), the Child and Welfare and Attendance Unit Coordinator for ABCUSD, gave Plaintiff the option of sitting outside the classroom, which Plaintiff denied, or being directed to an isolation room until her parent picked her up. (TAC, ¶ 36.) Plaintiff was then prohibited from going to school for fifteen days. (TAC, ¶ 37.)

The TAC asserts five causes of action: (1) false imprisonment, (2) negligence, (3) discrimination, (4) harassment, and (5)

defamation.

Legal Standard

Under Code of Civil Procedure section 2030.300, subd. (a), “[o]n receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply:

(1) An answer to a particular interrogatory is evasive or incomplete.

(2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate.

(3) An objection to an interrogatory is without merit or too general.”

“As a litigant, it is entitled to demand answers to its interrogatories, as a matter of right, and without a prior showing, unless the party on whom those interrogatories are served objects and shows cause why the questions are not within the purview of the code section.” (Williams v. Superior Court (2017) 3 Cal.5th 531, 541.) “While the party propounding interrogatories may have the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory.” (Ibid.)

Meet and Confer

The motion to compel further discovery shall be accompanied by a meet and confer declaration. (See Code Civ. Proc., § 2030.300, subd. (b)(1).) A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion. (Code Civ. Proc., § 2016.040.)

Plaintiff’s counsel sent a meet and confer letter to defense counsel on December 30, 2025, and then followed up the letter with five calls

to defense counsel in the first week of January of 2026. (Parker Decl., ¶¶ 5-6.) Plaintiff's counsel was unable to reach defense counsel. (Parker Decl., ¶ 6.)

In opposition, Defendant does not explain why it did not respond to meet and confer efforts prior to the filing of this motion. Defense counsel states that he received a meet and confer letter on April 23, 2026, and responded to it. (Stumreiter Decl., ¶¶ 2-3.)

While the foregoing does not reflect a good faith meet and confer process, the Court will proceed to rule on the merits of this motion based on Plaintiff's efforts and Defendant's lack of explanation in failing to respond.

Discussion

Plaintiff moves to compel further responses to FROGs, set one, nos. 1.1, 12.1, 12.2, 12.3, 12.4, 12.5, 12.6, 12.7 13.1, 13.2, 15.1 and 16.1 on the grounds that Defendant's responses contained meritless objections.

Plaintiff first argues that Defendant's preamble in its responses is improper. Defendant's responses include "GENERAL OBJECTIONS" stating "[t]he objections, answers and/or responses to the various interrogatories are expressly subject to the general objections and to any objections as to instructions or definitions. The general objections, and any objections as to instructions or definitions, are hereby expressly incorporated by reference into each answer and/or other response." (Parker Decl., Exh. C.) This section proceeds to make "[o]bjection[s]...to this set of interrogatories as a whole and to each interrogatory therein" on the basis of attorney client and work product privilege, trade secret, and relevance. (Parker Decl., Exh. C.)

The Court agrees with Plaintiff that these general objections are improper. Code of Civil Procedure section 2030.210, subdivision (a) provides "[t]he party to whom interrogatories have been propounded shall respond in writing under oath separately to each interrogatory." Moreover, "[e]ach answer...or objection in the response shall bear the same identifying number or letter and be in the same sequence as the corresponding interrogatory." (Code Civ. Proc., § 2030.210, subd. (c).) Given that these objections are improper, the Court finds that Defendant's objections are meritless.

In opposition, Defendant does not refute that these objections are general. Rather, Defendant makes arguments per interrogatory.

FROGs, set one, nos. 1.1, 12.2, and 12.3

Defendant argues that FROGs, set one, nos. 1.1, 12.2, and 12.3 are covered by work product protection. These FROGs inquire into the names and contact information of each person who participated in responding to the FROGs, whether anyone has been interviewed concerning the incident, and whether anyone has provided a written statement. (Separate Statement.)

“In California, an attorney's work product is protected by statute. (Code Civ. Proc., § 2018.010 et seq.) Absolute protection is afforded to writings that reflect ‘an attorney's impressions, conclusions, opinions, or legal research or theories.’ (Code Civ. Proc., § 2018.030, subd. (a).) All other work product receives qualified protection; such material ‘is not discoverable unless the court determines that denial of discovery will unfairly prejudice the party seeking discovery in preparing that party's claim or defense or will result in an injustice.’ (Code Civ. Proc., § 2018.030, subd. (b).)” (Coito v. Superior Court (2012) 54 Cal.4th 480, 485.)

Defendant relies on Coito to argue that FROGs, set one, nos. 1.1, 12.2, and 12.3 are protected as work product. Coito does not support Defendant's argument. In Coito, the Supreme Court of California held “the identity of witnesses from whom defendant's counsel has obtained statements...is not automatically entitled as a matter of law to absolute or qualified work product protection.” (Id., at p. 486.) “In order to invoke the privilege, defendant must persuade the trial court that disclosure would reveal the attorney's tactics, impressions, or evaluation of the case (absolute privilege) or would result in opposing counsel taking undue advantage of the attorney's industry or efforts (qualified privilege).” (Ibid.)

Here, Defendant does not put forth any facts for the Court to determine that disclosure reveals “the attorney's tactics, impressions, or evaluation of the case” or “would result in opposing counsel taking undue advantage of the attorney's industry or efforts.” (Ibid.) Therefore, Defendant's assertion of the work product privilege is without merit.

FROGs, set one, nos. 12.4, 12.5,
12.6, 15.1, and 16.1

Defendant argues that it provided responses to FROGs, set one, nos. 12.4, 12.5, 12.6, 15.1, and 16.1.

The Court notes that based on the general objections being incorporated into these responses, the Court cannot gauge whether these responses are complete responses.

Specifically, as to no. 12.6, the Court agrees with Plaintiff's argument that Defendant improperly narrowed the request. While no. 12.6 requests information about reports, Defendant's responses inexplicably narrow the definition of report to "formal reports such as police department reports, made as a regular procedure as distinct from notes" and claims "[u]sing that interpretation, no." (Separate Statement.) This response is incomplete.

As to no. 15.1, requesting facts to support Defendant's answer, the Court agrees that at this time, no answer to the operative pleading is filed. However, to the extent that objections are integrated into this response, Defendant's response is not Code-compliant. The same reasoning applies to no. 16.1, which inquires into causation of the subject incident.

FROGs, set one, nos. 13.1 and 13.2

Defendant contends that further responses will be provided to nos. 13.1 and 13.2. As there are no further responses provided by the time of this hearing, the Court finds that this response is incomplete.

Accordingly, Plaintiff's motion to compel further responses to form interrogatories, set one is GRANTED.

Defendant is ORDERED to provide further verified responses, without objections, as to form interrogatories, set one, nos. 1.1, 12.1, 12.2, 12.3, 12.4, 12.5, 12.6, 12.7 13.1, 13.2, 15.1 and 16.1 within 60 days of this Order. This length is intended to accommodate the time to hear any demurrers to the TAC. This date may be extended pursuant to agreement between the parties.

Sanctions

Plaintiff moves for monetary sanctions against Defendant and its attorneys of record based on Defendant's meritless objections.

"The court shall impose a monetary sanction...against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2030.300, subd. (d).)

The Court finds monetary sanctions warranted for Defendant's unsuccessful opposition of this motion. Plaintiff requests \$3,180 reflecting Plaintiff's counsel's hourly rate of \$600, 3 hours to draft this motion, 1.3 hours to draft the separate statement, and 1 hour to prepare for and attend the hearing. (Parker Decl., ¶ 11.) The Court finds this unreasonably excessive given Plaintiff's representation of her expertise and the amount of discovery at issue. The Court reduces one hour.

Accordingly, Plaintiff's request for monetary sanctions is GRANTED in the amount of \$2,580 against Defendant and its attorneys of record.

Defendant and its attorneys of record are ORDERED to pay this amount within 60 days of this Order. This date may be extended pursuant to agreement between the parties.